

		Attachment 3 and 4.) Since the Subpoena is tethered to a third-party examination under section 708.120, the scope of the Subpoena's document request is limited to whether the CB Cal possesses the Economic Commerce's property or owes Economic Commerce a debt over \$250. (See <i>Fox Johns, supra</i>, 219 Cal.App.4th at p. 1222.) "While there may be other procedures that allow [the judgment creditor] to discover the information it seeks, neither section 708.120 nor a subpoena duces tecum <i>related to that statute</i> authorizes such broad discovery." (<i>Ibid.</i>, italics added.) Thus, the requests at issue are overbroad because they are not limited to accounts reflecting funds owned by Economic Commerce or to debts owed to Economic Commerce that are in excess of \$250. Request Nos. 13 – 35 also seek impermissible alter-ego discovery. (See <i>Fox Johns, supra</i>, 219 Cal.App.4th at p. 1220.) Plaintiff effectively concedes it seeks alter-ego discovery of Electronic Commerce by claiming Ponder testified in deposition that Electronic Commerce's assets and liabilities were transferred to Ecom "with absolutely no compensation to Electronic Commerce" and Ecom "was 'Mr. Maraanu's company' that later 'became one' with Electronic Commerce" and, therefore, MaaRanu and Ecom are liable on Plaintiff's judgment against Electronic Commerce. (Opp., pp. 4:8-22.) Section 708.120 is "not a mechanism for a judgment creditor to . . . otherwise obtain information about entities that may be the alter ego of the judgment debtor." (<i>Fox Johns, supra</i>, 219 Cal.App.4th at p. 1220.) Request Nos. 13 – 35 also violate the stay of this action pending arbitration as Plaintiff is attempting to obtain direct discovery concerning MaaRanu and Ecom. Plaintiff could have obtained the same discovery during arbitration. However, to date, Plaintiff has failed to initiate arbitration despite having stipulated to do so almost two years ago. (See Mot. p. 5:14; Catanzarite Decl., ¶3; Reply p. 3:26-27.) Plaintiff has failed to explain why it has not initiated arbitration. The motion is GRANTED.
3	22-01289838 <i>Brown vs. Dziuk</i>	Motion for Ruling on Objection Plaintiff/Cross-Defendant Max Brown's Motion for Ruling on the Objections to the Statement of Decision is GRANTED. The Court ORDERS a hearing on the objections to the Statement of Decision and Proposed Judgment.
4	21-01199592 <i>Burgos vs. Degiacomo</i>	1) Motion for Order to Stay Proceedings 2) Motion to Vacate Motion 1: Motion to Vacate Plaintiff Glenda Burgos's Motion to Vacate is OFF CALENDAR. Plaintiff seeks an order vacating the post-trial attorney fee award entered on 3/26/26 pursuant to Code of Civil Procedure section 663.

		However, pursuant to Code of Civil Procedure section 663a, subdivision. (b), the motion was deemed denied as of 6/9/26 without further order of the court because the court did not rule on the motion within 75 days of the clerk mailing plaintiff notice of the order. Further, even if the motion is properly deemed a motion for reconsideration under Code of Civil Procedure section 1008 as Defendant contends, the court lacks jurisdiction to rule on it because of the pending appeal of the order. Motion 2: Motion to Stay of Enforcement Plaintiff Glenda Burgos's Motion to Stay Enforcement is DENIED as moot. Plaintiff seeks an order staying enforcement of the post-trial attorney fee award in the amount of \$7,070 entered on 3/26/26 pending resolution of Plaintiff's motion to vacate. However, Plaintiff already paid the \$7,070 fee award in April of 2026. (Dreyfuss Decl., ¶ 3.)
5	24-01420260 <i>Claudio vs. People Assisting The Homeless of Riverside California, Incorporated</i>	Motion for Summary Judgment and/or Adjudication Defendants People Assisting the Homeless of Riverside, California, Inc.; David Oliver; Richard Robison; and Courtney Gonzalez's Motion for Summary Judgment is MOOT and thus, taken off calendar in light of Plaintiff Nathaniel Garcia Claudio's acceptance of Defendants' statutory offer to compromise.
6	25-01499896 <i>Exim Engineering, Inc. vs. Orange Courier Inc.</i>	Motion to Be Relieved as Counsel of Record The motion of attorney William Kersten from Kersten & Associates to be relieved as counsel of record for defendant Orange Courier Inc. is DENIED without prejudice. On 7-30-26, the court continued the hearing on the Motion for failure to file proof of service showing moving papers were served on client and on all other parties that have appeared in the case in compliance with California Rules of Court, Rule 3.1362 subdivision (d). (Cal. R. Ct., Rule 3.1362, subd. (d) ["The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case."]) On 9-9-26, moving attorney filed a proof of service showing the Notice of Motion and Motion to Be Relieved as Counsel and Declaration in Support of Motion was served on the client on 7-31-26 by mail. (ROA 35.) The proof of service does not show the Proposed Order was not served on the client and there is no showing that any of the moving papers were served on Plaintiff or on other parties who have appeared in the case. Moving attorney to give notice.
7	25-01457304 <i>Fondo vs. Reyes Coca-Cola Bottling, L.L.C.</i>	Motion for Leave to File Cross Complaint Defendant Lancer Worldwide's Motion for Leave to File Cross-Complaint is GRANTED.